

STATE OF CONNECTICUT
OFFICE OF POLICY AND MANAGEMENT



INVENTORY OF STATE REAL PROPERTY
IN ACCORDANCE WITH CGS 4-67G

Submitted by the Office of Policy and Management

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Section 2 of Connecticut General Statute 4-67g, requires the Office of Policy and Management (i.e. "OPM") to maintain an inventory of State real property, both owned and leased. In addition the statute requires that OPM annually submit copies of the inventories to the joint standing committees of the General Assembly having cognizance of matters relating to government administration and appropriations and the budgets of state agencies. A copy of CGS 4-67g is included in *Appendix A* of this document.

Currently, in order to produce the most complete inventory of the State's real property it is necessary to combine three (3) separate sources:

1. The State building inventory - contains information on structures that are owned by the State of Connecticut. This inventory is currently maintained by the OPM and information is self-reported by those agencies that have custody and control over State owned buildings.
2. The State leasing inventory - contains information on those locations that are leased by the State of Connecticut to meet its realty needs. The information is currently maintained by the Department of Administrative Services (i.e. "DAS").
3. Payment in Lieu of Taxes (i.e. "PILOT") information - this program provides payment in lieu of local property taxes (PILOT) to municipalities for property owned and used by the State of Connecticut; however, it does not include personal property owned by the State or property used for highway purposes.

Within the confines of existing resources, it is the intention of the OPM to combine these separate data sources into a single, comprehensive inventory.

CGS 4-67g requires OPM to:

1. Identify existing buildings that are of historic, architectural or cultural significance, including buildings listed or eligible to be listed in the national register established under the National Historic Preservation Act of 1966.

This is accomplished as part of the inventory of State owned buildings which includes a field called "*On/Eligible for Historic Register*". The agency with custody and control over the building is required to determine and report this information to OPM.

2. Identify existing buildings that would be suitable, whether or not in need of repair, alteration or addition, to meet the public building needs of the state or to meet the needs of the public in accordance with the provisions of subsection (m) of section 4b-23.

The OPM does not currently have the resources necessary to make such determination; however, to the extent possible OPM will endeavor, within existing resources, to make improvement in this area over time.

It should be noted that subsection (m) of section 4b-23 does not speak to the building needs of the State or public but rather that section speaks to renewable energy sources in State buildings. Specifically CGS 4b-23(m) states:

(m) (1) Plans to construct, renovate or modify state-owned or occupied buildings shall provide for a portion of the total planned floor area of newly constructed state buildings or buildings constructed specifically for use by the state to be served by renewable sources of energy, including solar, wind, water and biomass sources, for use in space heating and cooling, domestic hot water and other applications. For the plan due December 1, 1979, the portion to be served by renewable energy sources shall be not less than five per cent of total planned new floor area. For each succeeding state facilities plan submitted after December 1, 1979, the portion of the total planned floor area of any additional newly constructed state buildings or buildings constructed specifically for use by the state to be served by renewable energy sources shall be increased by at least five per cent per year until a goal of fifty per cent of total planned floor area of any additional newly constructed state buildings or buildings constructed specifically for use by the state is reached. For any facility served by renewable energy sources in accordance with this subsection, not less than thirty per cent of the total energy requirements of any specific energy application, including, but not limited to, space heating or cooling and providing domestic hot water, shall be provided by renewable energy sources. The installation in newly constructed state buildings or buildings constructed specifically for use by the state of systems using renewable energy sources in accordance with this subsection, shall be subject to the life-cycle cost analysis provided for in section 16a-38. (2) The state shall fulfill the obligations imposed by subdivision (1) of this section unless such action would cause an undue economic hardship to the state.

While OPM is not aware of what section was specifically intended, subsection (n) of 4b-23 requires the State Facility Plan (www.ct.gov/opm/property) to include various policies including ones to encourage public pedestrian traffic in, through and around State buildings and encourage the public use of State buildings.

IMPORTANT NOTE: Copies of the Inventories – While CGS 4-67g states that OPM shall submit copies of the inventories to the joint standing committees, complete copies of the State building inventory would be well in excess of 1,000 printed pages, therefore the complete building inventory, along with the inventory of leased locations and PILOT information is made available electronically (Microsoft Excel format) on the OPM website at www.ct.gov/opm/property

Appendix A

Sec. 4-67g. State real property: Long-range planning, efficiency and appropriateness of use and inventories. Secretary approval re ownership and use. (a) The Office of Policy and Management shall be responsible for: (1) Long-range planning with regard to the use of all state real property; (2) determining

the level of efficiency of each and every state agency's use of any and all real property under its control; (3) maintaining an inventory of state real property; (4) maintaining an inventory of real property leased by state agencies; and (5) determining the appropriate use of state real property.

(b) In creating and maintaining such inventories, the secretary shall make recommendations concerning the reuse or disposition of state real property and identify in such inventories existing buildings that (1) are of historic, architectural or cultural significance, including buildings listed or eligible to be listed in the national register established under the National Historic Preservation Act of 1966, 80 Stat. 915 (1966), 16 USC 470a, and (2) would be suitable, whether or not in need of repair, alteration or addition, to meet the public building needs of the state or to meet the needs of the public in accordance with the provisions of subsection (m) of section 4b-23. At the request of the secretary, the Commissioner of Economic and Community Development shall advise the secretary as to whether such buildings are of historic, architectural or cultural significance.

(c) All state agencies shall provide the secretary, in the manner and form prescribed by the secretary, with any information requested by said secretary for purposes of maintaining the inventories required by this section.

(d) The secretary shall update such inventories not less than annually and shall provide the Commissioner of Administrative Services with a copy of such inventories whenever the inventories are updated.

(e) Not later than July 1, 2016 and annually thereafter, the Secretary of the Office of Policy and Management shall submit a copy of such inventories, in accordance with the provisions of section 11-4a, to the joint standing committees of the General Assembly having cognizance of matters relating to government administration and appropriations and the budgets of state agencies.

(f) Each state agency shall request and obtain the written approval of the secretary or his or her designee prior to any (1) change in ownership of state real property, (2) change in use of state real property, (3) use of state real property by an entity other than a state agency, or (4) use of state real property by a state agency other than the state agency with custody and control over such state real property. For purposes of this subsection, "state agency" does not include a constituent unit of the state system of higher education, a technical high school or an agency in the legislative or judicial branch of state government.

(g) Except as otherwise provided, for the purposes of this section, "state real property" means any improved or unimproved real property owned by a state agency, and "state agency" means any office, department, board, council, commission, institution, constituent unit of the state system of higher education, technical high school or other agency in the executive, legislative or judicial branch of state government.